

**ORDER SHEET
IN THE LAHORE HIGH COURT
LAHORE.
JUDICIAL DEPARTMENT**

Crl. Misc. No.247934-B/2018

Ahmad Ali etc

Versus

The State and another

S.No of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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16.01.2019 Mr. Muhammad Amer Tauseef, Advocate with petitioners.
Mr. Mujahid Waseem Chaudhary, Advocate for the complainant.
Mr. Shabbir Ahmad, Deputy Prosecutor General.
Nawaz, ASI with record.

Apprehending arrest at the hands of local police, petitioners seek pre-arrest bail in case FIR No.491 dated 05.10.2018, registered under Sections 337-F(v) and 34 PPC at Police Station Noor Shah, District Sahiwal.

2. The brief allegation as per contents of FIR against the petitioners/accused is that on 21.09.2018 at about 07:00 p.m they while armed with sticks (sotas) etc forcibly trespassed into the house of complainant Muhammad Hussain and thereafter caused injuries on the person of Mst. Shamshad Bibi wife of the complainant.

3. Heard. Record perused.

4. On perusal of record it transpired that both the petitioners have specifically nominated in the instant crime report but the role attributed to petitioner No.1 Ahmad Ali is that he inflicted a stick (sota) blow on person of wife of the complainant Mst. Shamshad Bibi, which hit her on her right leg whereas role attributed to petitioner No.2 Ali Ahmad is of general nature, and no

specific injury is attributed to him. The said Mst. Shamshad Bibi injured was medically examined on same day i.e. 21.09.2018 wherein doctor observed injury on her right lower leg, which later on declared as was ghyr-jaifah hashimah and attracts the provision of Section 337-F(v) PPC and this injury attributed to petitioner No.1 Ahmad Ali. There is no other obvious injury was found by the doctor on person of the victim. During the course of investigation the victim has also deposed under Section 161 Cr.P.C by making her statement before the police wherein injury No.1 sustained by her was attributed to Ahmad Ali petitioner No.1 and the Investigating Officer has also opined that he is fully involved in the alleged crime. So keeping in view the above circumstances, Ahmad Ali petitioner No.1 is not found to be eligible for the extra ordinary relief of pre-arrest bail, which relief can only be extended to save the innocent persons, therefore, the instant petition up to his extent is dismissed. Ad interim pre-arrest bail already granted to him by this Court vide order dated 08.11.2018 is hereby recalled.

5. As far as petitioner No.2 namely, Ali Ahmad is concerned. Since he is not attributed any specific injury by the complainant and doctor while conducting the medical examination has also only found one visible injury, which obviously is not attributed to him. Therefore, his involvement in the instant crime report being real brother of petitioner No.1 Ahmad Ali is not ruled out.

6. For what has been discussed above, mala fide of the complainant and police against petitioner No.2 cannot be ruled out and this petition is allowed to his extant and ad interim pre-arrest bail already granted to the petitioner by this Court vide order dated 08.11.2018 is confirmed

subject to his furnishing fresh bail bond in the sum of Rs.1,00,000/- (rupees one lac) with one surety in the like amount to the satisfaction of the learned trial court.

(Muhammad Waheed Khan)
Judge.

APPROVED FOR REPORTING:

Judge.

Ansar*